

FIRST SCRUTINY

The Restoration Programme

What the programme is, and the argument it turns on

An issues paper. The starting point of legislative scrutiny, not the end of it.

A draft for the proposers to correct.

Proposer: David Starkey

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Scrutinise is free and non-partisan. It takes a proposal and works out what delivering it would actually require. It is available on identical terms to anyone.

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The Part number is in the teal banner across the top of every page, with the section name beside it.

What this is

This document takes a political programme and works out what it would take to actually do it.

That is the whole idea behind Scrutinise. Someone says what they want changed. Scrutinise works through what would have to happen — which laws, which bodies, which decisions, which obstacles — and hands it back with the questions only the proposers can answer.

This is the first time Scrutinise has been pointed at a programme this size.

The programme is twelve measures, not one

Most of the public discussion treats "the Starkey thesis" as a single idea. It is not. It is at least twelve separate changes, each with its own law, its own opposition and its own difficulty. Some are simple. Some have never been attempted by anyone. Two are already before Parliament in narrower form.

Part 1 sets out all twelve. Parts 2 and 3 cover what applies across the whole programme. Part 4 takes two of them all the way down, so you can see the depth available and multiply it by twelve. Part 5 covers the rest more briefly.

What is in it

Across the whole programme

- The register — every change, in David's own words, with the law that would have to change, and why
- Whether repeal alone achieves what is intended, tested against the courts and against two published legal analyses
- Four different plans proposed within a year by people on the same side of the argument, and where they contradict each other
- What repeal does to Scotland, Wales and Northern Ireland
- The published positions on each measure, including the ones that cut against the programme and the ones that have overtaken it

For each measure worked in full

- What the law actually does, and what it does not do
- What else in the law points at it, counted and grouped
- What the courts have said
- What was tried before, and what happened to it
- How hard this will be, and what is most likely to go wrong

What this is not

It is not a finished proposal, a recommendation, or a costing. Nothing here argues that this programme should proceed. It sets out what proceeding would involve.

It is also not complete, and does not pretend to be. It is a first pass whose purpose is to show the shape and depth of what the programme entails. Carrying it through would need planning, strategy and resourcing well beyond anything in this document.

And it is a pilot. Scrutinise is new, and this is among the first proposals put through it. Where a section misses, saying so is the most useful correction available. Some items will be a simple deletion; others will open something that has to be worked properly. **

How to read it, and three limits to know first

Every finding traces to a source and is dated. Where the document reasons rather than cites, it says so. Where the record is silent, that is said too — **a gap that names itself is worth more than one that looks like an absence of evidence.**

Three limits you should know before you read anything else.

One. The record of court judgments used here begins in 2003. Not by choice. The free public record starts in 2001 at the earliest, The National Archives has confirmed the pre-2001 paper record will not be digitised, and the main free database does not permit copying. Older judgments are cited from public sources and marked as such. No citator — the tool lawyers use to check whether a judgment has since been doubted or overruled — was available for this pass, so it cannot be confirmed that none of the judgments cited has been doubted or overruled. That check should be done before any of this argument is relied on.

Two. Quotations from spoken material are machine-transcribed. Where two independent transcription systems agree, the text is treated as sound. Where only one exists, the passage is either checked by ear or turned into a paraphrase and labelled as one. It is never quoted from a single machine transcript.

Three. Every number says what it counts and out of what. None is presented as complete. Where the document says "23 Acts were cited", that means 23 in the material retrieved — not 23 in the world.

Terms of art used in this document, defined once here rather than in the body.

Term	What it means
Absorption	The process by which a right originally created by one statute comes to be protected by others as well, so that repealing the first statute does not remove the right.
Annulment (as used in this programme)	Legislating to declare that provisions never had legal effect, rather than repealing them prospectively. Distinct from ordinary repeal, and constitutionally far more contested.
Citator	The tool a lawyer uses to check what has happened to a judgment since it was given — whether later courts have followed it, distinguished it, doubted it or overruled it.
Consequential amendment	A change to another Act made necessary by the main change, usually to correct cross-references. A repeal of any substantial Act generates many.
Declaration of incompatibility	A statement by a senior court under section 4 of the Human Rights Act 1998 that a provision cannot be read compatibly with the Convention. It does not strike the provision down; it puts the question back to Parliament.
Devolved / reserved	A devolved matter is one the Scottish Parliament, Senedd or Northern Ireland Assembly may legislate on; a reserved matter is one Westminster keeps. Whether a measure is devolved determines who has to agree to it.
Enabling power	A provision in an Act that authorises a minister to make secondary legislation. Provisions reached through an enabling power are counted separately here from those named directly.
Henry VIII power	A power in an Act allowing a minister to amend or repeal primary legislation by order, without a new Act. Named for the Statute of Proclamations 1539.
Interpretive obligation	The duty under section 3 of the Human Rights Act 1998 to read legislation compatibly with the Convention so far as it is possible to do so.
Legislative consent motion	The vote by which a devolved legislature consents to Westminster legislating on a devolved matter. See <i>Sewel convention</i> .
Long title	The opening words of a Bill describing its purpose. It limits what may be added by amendment, so a narrow long title constrains what a Bill can be made to do.
Ouster clause	A provision seeking to exclude or limit the courts' jurisdiction to review a decision.
Per incuriam	Of a judgment: reached in ignorance of a binding authority or statutory provision, and therefore not binding on later courts.

Term	What it means
Primary / secondary legislation	Primary legislation is an Act of Parliament. Secondary (or delegated) legislation is made under an Act by a minister, usually as a statutory instrument.
Public sector equality duty	The duty in section 149 of the Equality Act 2010 requiring public bodies to have due regard to specified equality objectives when exercising their functions.
Remedial order	Secondary legislation made under section 10 of the Human Rights Act 1998 to correct a provision found incompatible with the Convention.
Sewel convention	The convention, given statutory recognition but not made enforceable, that Westminster will not normally legislate on devolved matters without the devolved legislature's consent.
Statutory instrument	The usual form of secondary legislation. Several thousand are made each year.
Sunset clause	A provision causing an Act or part of it to expire on a stated date unless renewed.
Treatment (of a judgment)	What a later court did with an earlier decision: followed, applied, distinguished, doubted, disapproved, not followed, read down, per incuriam, or overruled.

Marks used in this document

In running text, source confidence is stated in words: **[verified]** — the citation has been checked and the document exists; **[corroborated, unchecked]** — named independently by more than one research pass, but not yet checked against the source; **[single mention, unchecked]** — named once only, a lead rather than a citation.

In tables the same three are marked ✓, ● and ○, with the key printed beneath each table that uses them.

⚠ marks a finding that cuts against the expected answer. ⚠⚠ marks one that changes what a section concludes.

The argument underneath all twelve: the political constitution and the legal constitution

** They said the serious literature is not organised around "British law versus European law". It is organised around a different distinction, and getting it right changes who the programme's allies are.

The distinction that actually runs through the literature

Political constitutionalism versus legal constitutionalism. It traces to a 1979 lecture by J. A. G. Griffith called *The Political Constitution* [corroborated, unchecked].

	The political constitution	The legal constitution
Where authority sits	The elected majority in the Commons	Enforceable rights, treaties and statutory duties
How power is checked	Elections, ministerial responsibility, public argument	Judicial review, regulators, tribunals, international courts
What judges do	Interpret what Parliament meant; develop the common law step by step	Test executive decisions against rights and equality standards
What democracy means	Procedural — what the majority chooses through elected representatives is legitimate	Substantive — a real democracy requires legal constraints protecting rights and minorities

⚠️⚠️ **Why this matters more than it looks.** On the "British versus European" framing, the programme is making a nationalist argument, and it is vulnerable to a single book — see below. **On the political-versus-legal framing, it joins a serious argument with serious people on both sides, including people who are not on its political side at all.**

⚠️⚠️ The book that breaks the "British versus foreign" framing

Sir John Laws, The Common Law Constitution (2014) [corroborated, unchecked] — one of the most important British public-law judges of his generation.

His argument is that the common law itself supplies constitutional principle and itself polices the boundary between political power and legal constraint. **Strong judicial constraint is not an import. It grew here.**

⚠️ **This is the single most awkward item in the literature for the programme's stronger version,** because it destroys the binary:

British common law = parliamentary government · European rights law = judicial government

If Laws is right, repealing the Human Rights Act and leaving the Convention removes the imported layer and leaves the domestic one standing — which is precisely what Part 2.1 finds from the case law, arrived at independently.

The programme needs an answer to this, and the answer cannot be that judicial power is foreign.

Who is on each side

⚠ Names and works below are drawn from the research. Those marked [corroborated, unchecked] were named independently by two or more; [single mention, unchecked] by one only. None has been read in full for this pass. They are a reading list, not authority.

Arguing that political choice has been displaced by legal process

Who	Work
Lord Sumption ✓	<i>Trials of the State</i> / 2019 Reith Lectures. The most formidable statement of the case, made from the bench
Lord Hoffmann ●	<i>The Universality of Human Rights</i> , 2009 lecture. Objects to Strasbourg's claim to set uniform European standards
Professor Richard Ekins ●	Policy Exchange's Judicial Power Project, 2015 onwards
Sir Stephen Laws ●	Former First Parliamentary Counsel. ⚠ Note: he sat on the 2021 review that recommended keeping the Human Rights Act
Professor Martin Loughlin ●	<i>Against Constitutionalism</i> (Harvard, 2022). ⚠ A critique from the left
Professor Adam Tomkins ●	<i>Our Republican Constitution</i> (2005). Executive should answer politically through Parliament, not legally through courts
Professor Richard Bellamy ○	<i>Defending the Political Constitution</i> (2026). ⚠ Named once. If real, it is the most directly relevant recent book
Ran Hirschl ○	<i>Towards Juristocracy</i> (2004). Argues this is a general Western pattern, not a British plot
David Starkey ✓	<i>Bingham's failed revolution</i> , <i>The Critic</i> , March 2025

Key — ✓ verified · ● named independently by more than one research pass, not yet checked · ○ named once only, a lead rather than a citation

Arguing that the settlement works and is not anti-democratic

Who	Work
Lord Bingham ●	<i>The Rule of Law</i> (2010). The eighth principle is the crux
Professor Aileen Kavanagh ●	<i>The Collaborative Constitution</i> (2023). Named by all four passes. Argues courts, Parliament and the executive work in partnership rather than competing for supremacy
Professor Sir Vernon Bogdanor ●	<i>The New British Constitution</i> (2009). The standard account that a constitutional revolution happened without being announced
Professor Conor Gearty ●	<i>On Fantasy Island</i> (2016). Argues the "foreign imposition" story is a political construction

Who	Work
Lady Hale, Lord Reed, Lord Neuberger ●	Extra-judicial lectures denying a US-style political role for the court
Lord Hermer KC ●	Attorney General. 2024 Bingham Lecture, treating "rights versus democracy" as a false choice

Key — ✓ verified · ● named independently by more than one research pass, not yet checked · ○ named once only, a lead rather than a citation

⚠️⚠️ The ally the programme has not noticed

Griffith, Tomkins, Loughlin and — if it exists — Bellamy make substantially the same diagnosis as the programme, from the left. Their argument is that political choices have migrated to legal and expert bodies, and that this insulates decisions from electorates.

They disagree about the remedy, not the diagnosis.

One named example: **Peter Ramsay, writing in April 2025** [single mention, unchecked], accepts the diagnosis and rejects the remedy — arguing that much of this legislation must go for government to be democratically accountable, while treating the Great Repeal as the dead end of the Thatcherite right.

⚠️ **That is a more useful opponent than a defender of the status quo**, and it is the strongest available evidence that the programme's diagnosis is not a partisan position. **Proponents rarely read this literature. It is their best argument that the case is not party-political.**

What a well-informed critic will cite that a proponent may not have read

This is the shelf to have confronted before publishing legislation. It is not the other side's slogans; it is the material that makes the strongest case that these statutes do something other than the repeal case says.

1. **The full 2021 Human Rights Act review** [corroborated, unchecked], not the press coverage. Government-commissioned, appeal judge in the chair, a former First Parliamentary Counsel on the panel — and it recommended keeping the Act.
2. **The 2021 administrative law review** [corroborated, unchecked] — a second sceptic-chaired government review that looked for overreach and found the problem smaller than alleged.
3. **Kavanagh, The Collaborative Constitution**** [corroborated, unchecked] — the current academic answer to "judges versus democracy", which rejects the premise rather than the conclusion.
4. **Sir John Laws, The Common Law Constitution**** [corroborated, unchecked] — for the reason set out above.
5. **The Belfast/Good Friday Agreement texts themselves**, and the competing Northern Ireland legal opinions. See Part 2.4.
6. **Bingham read properly** [corroborated, unchecked] — chapter on parliamentary sovereignty, with the 2008 article. He is not the patron saint of judicial supremacy and a critic will say so.
7. **The devolution statutes and the Sewel convention** [corroborated, unchecked] — a Westminster-only programme collides with three of them.
8. **The pre-1998 common-law rights cases** [corroborated, unchecked] — *Simms, Witham, Leech, Pierson*. ⚠️ **If you repeal the Human Rights Act you do not return to a blank common law. You return to one that**

senior judges had already said contains fundamental rights. David has himself made this point; these cases are what make it precise.

9. **Comparative evidence on impartial civil services** [corroborated, unchecked] — the claim that statutory impartiality makes a state ungovernable is an empirical claim, and the comparative work runs the other way.
10. **The actual text of section 149** — "due regard", not "achieve equality of outcome". ⚠️ **Much of the repeal case is a case against institutional practice that may not be required by the section**, and a critic will insist on that distinction before arguing that practice can be changed by guidance rather than repeal.

And the development that cuts against the central premise

A load-bearing premise of the programme is that the Convention system cannot be reformed, so only leaving works.

In May 2026 all 46 Council of Europe member states adopted a political declaration at Chişinău on the **Convention and migration** [verified] — subsidiarity, the margin of appreciation, Articles 3 and 8 in expulsion cases, and mass arrivals.

⚠️ **Both halves of this must print.** It is not binding, does not amend the Convention, and does not bind the Strasbourg court — so whether it changes any outcome is an open empirical question. **But 46 states have just done, by declaration, the thing the premise says cannot be done, on precisely the ground where the pressure is greatest.**

That is a contested development, not a refutation. It is also the question the programme is most likely to be asked in public and least prepared for.

The twelve measures at a glance

	Measure	Depth in this document
1	The Human Rights Act 1998 and the European Convention	★ Worked in full — Part 4.1
2	The Equality Act 2010 and the public sector equality duty	★ Worked in full — Part 4.2
3	The UK Supreme Court	Register and summary
4	The arm's-length bodies — the "quangos"	Register and summary
5	Judicial review of ministers' decisions	Register and summary
6	The permanent, appointed civil service	Register and summary
7	The independence of the Bank of England	Register and summary
8	Diversity and inclusion practice in the civil service	Register and summary
9	Gender self-identification	Register and summary
10	Publicly funded charities campaigning	Register and summary
11	The Sentencing Council and sentencing guidelines	Register and summary
12	The Great Repeal itself — the programme as one Act	★ Tested in Part 3

Two are worked all the way down, in Part 4, so you can see the depth available and multiply it by twelve. The Human Rights Act because it is the flagship and has the most published work behind it. The Equality Act because a Bill to do part of it is before the Commons now, and because it produced the most surprising result in the document.

Where this list came from

The list is not taken from anyone's summary. It is built from David's own words.

The source is a corpus of **287 transcripts of David speaking** — the lecture series, the conference addresses, the long-form interviews — held as machine transcripts, searched in full. Where two independent transcription systems agree on a passage, it is treated as sound. Where only one exists, the passage is either checked by ear or turned into a paraphrase and labelled as one. **No quotation in this document rests on a single machine transcript.**

Each of the twelve above is something David is recorded as saying. The register in the next section gives the words.

Why this list is not the list in circulation

A "twelve-point programme" is in general use in the commentary. **It is not the same list.**

Every item on the circulated list was checked against all 287 transcripts. Four of them cannot be traced to anything David is recorded as saying:

- Restoring the office of Lord Chancellor
- Repealing the Climate Change Act 2008 or ending the Net Zero duty
- Abolishing the Judicial Appointments Commission
- Making it easier to remove named judges

And two things David says repeatedly are not on the circulated list at all — the independence of the Bank of England, and publicly funded charities.

 **The list the programme is being discussed under is not the list David has stated.** That is a fact about the public conversation rather than about David, and correcting it is the first thing this document does. The four unsourced items are printed at the end of the register, marked, so David can confirm, correct or delete them rather than have them silently attributed or silently dropped.

The assumptions made here, stated so they can be rejected

Six, and any of them could be wrong.

One. Each measure is treated as a separate proposal. David's own position is that they must move together. They are split so that each can be worked properly, and the "must move together" claim is then tested on its own terms in Part 3.

Two. Where David describes a complaint rather than a remedy, the complaint is taken as the measure. The Bank of England is the clearest case: David describes mismanagement since 1998 rather than setting out what should replace independence. It is registered as a measure, with the lower confidence flagged.

Three. Where David names an example rather than a target, it is worked anyway. The Sentencing Council is named as an instance of the quango problem, not as a separate item. It is given its own entry so the document can show what dealing with one named body actually costs. **Whether it is one of the twelve is a question for David.**

Four. Where David names no legal instrument, none is invented for him. The charities measure is the case: legislation, grant conditions and Charity Commission guidance are all available and produce entirely different results. The options are set out, and the choice is recorded as unmade.

Five. The complaint is separated from the remedy throughout. David states almost every measure as a remedy — repeal this, abolish that. **A remedy is not a problem statement**, and working out what has to change requires knowing what is wrong, not only what is to be removed. So each entry states the complaint first and the proposed remedy second. Where the complaint has been got wrong, the entry will be wrong.

Six. The target is taken to be the law as it stands today, not as it stood when David described it. On two measures that matters: the courts have moved since, in the direction David wants.

The three that turned out to be different from expected

Printed here because a reader flipping through should not have to find them.

Measure 6, the civil service, has an ambiguous target. David objects to the Northcote-Trevelyan reforms of 1854. The law that exists is the Act of 2010. **Repealing the 2010 Act leaves the 1854 settlement standing as**

convention — and the convention, not the statute, is what determines how Whitehall behaves. This is the largest gap in the programme between what is said and what would have to be drafted.

Measure 9, gender self-identification, may already be delivered. Self-identification was never enacted in Great Britain, and the Supreme Court decided the point in April 2025 in the direction David wants. What remains is enforcement, not legislation.

Measures 2, 8 and 9 are substantially one measure, not three. They converge on the same statute. Part 3 shows the working.

Four measures attributed to David that the record does not support

These four appear on the widely circulated list. **287 transcripts were searched, and no statement of any of them was found.** They are printed here so David can confirm, correct or delete.

Attributed measure	Position
Restore the office of Lord Chancellor	Not found in David's words. Note also that the office was never abolished — the Constitutional Reform Act 2005 changed its functions. David may mean restoring the old functions, which is a different and narrower thing
Repeal the Climate Change Act 2008 / end the Net Zero duty	Not found in David's words
Abolish the Judicial Appointments Commission	Not found in David's words
Make it easier to remove named judges	Not found in David's words

And two things David says repeatedly are not on the circulated list at all: the Bank of England (measure 7) and publicly funded charities (measure 10).

 **The list the programme is being discussed under is not the list David has stated.** That is a fact about the public conversation rather than about David, and correcting it is the first thing this register does.

The register: what David said, and what the law would have to do

This is the heart of the document. The left of each entry is what David said, in David's own words wherever the record allows. The right is a reading of what would have to change in the law to deliver it, and why.

Where David has been read wrongly, this is the page to correct. Everything downstream depends on these entries being right.

How to read an entry

Each measure has five parts:

- **What David said** — David's words. Where these come from a recorded talk, they are machine-transcribed and marked for checking.
- **What this appears to mean** — a reading of it, which may be wrong.
- **The law that would have to change** — the specific Acts and sections, taken from a search of the statute book.
- **What stands in the way** — the single biggest obstacle identified.
- **Status** — whether anyone has ever tried this.

A note on the twelve. A widely circulated list of "twelve points" is in general use. It has been checked against 287 transcripts of David speaking. **Four items on that list cannot be traced to anything David is recorded as saying, and two things David says repeatedly are not on it.** David's words are used throughout, and the four unsourced items are set out separately so David can confirm or delete them.

1 · The Human Rights Act and the European Convention

What David said: *"we need to repeal an awful lot of law that has empowered and indeed politicised the judiciary, like the Human Rights Act, the Equalities Act"* — and, separately, on the need for *"much much clearer language about the need to repeal the European Convention and the realization of both the legal and the symbolic importance of the convention."*

What this appears to mean: Repeal the Human Rights Act 1998, and give notice to leave the European Convention on Human Rights under Article 58 of the Convention.

The law that would have to change: Human Rights Act 1998 — the whole Act, but section 21 in particular, which defines what "the Convention rights" are and lists what the Act repealed when it came in. Withdrawal from the Convention itself is not an Act of Parliament at all; it is a notice given to the Council of Europe, which takes six months. The search also turned up section 18 of the European Union (Withdrawal Agreement) Act 2020 as touching the same ground.

What stands in the way: These are two separate legal acts, not one. Repealing the Act does not take the UK out of the Convention, and leaving the Convention does not by itself remove the Act. A programme has to say which it wants, or say that it wants both and in what order. **Part 2.1 sets out the larger problem: whether either removes the rights at all.**

Status: The most attempted of the twelve. A Bill of Rights Bill was introduced in June 2022 and abandoned in June 2023 without ever reaching a second reading. **And there is a Bill before the Commons now** — see Part 2.6.

2 · The Equality Act 2010

What David said: the same sentence as above — *"the Human Rights Act, the Equalities Act"*.

What this appears to mean: Repeal the Equality Act 2010, including the public sector equality duty in section 149.

The law that would have to change: Equality Act 2010, and in particular section 149 (the duty), Schedule 18 (the exceptions to it), Schedule 19 (the list of public bodies it binds), and sections 150 to 157, which exist only to make section 149 work. Also the Equality Act 2006, sections 31, 32 and 34, which govern the Equality and Human Rights Commission.

What stands in the way: Three things, and all are in Part 4.2. The duty has never applied in Northern Ireland. Most of the working machinery built on it is Scottish and Welsh. And the official Opposition has publicly taken a narrower position than this one.

Status: A Bill to repeal section 149 is before the Commons now. No government review in fifteen years has recommended repealing the whole Act.

3 • The Supreme Court

What David said: *"We formally express the supremacy of the judiciary in Britain by the extraordinary creation of a Supreme Court. How you can have a Supreme Court alongside a sovereign parliament is deranged."*

What this appears to mean: Abolish the UK Supreme Court and send final appeals back to the House of Lords, as before 2009.

The law that would have to change: Constitutional Reform Act 2005, Part 3. The search returned nine separate provisions of that Act, including sections 24, 40 and 148 and six paragraphs across Schedules 1, 9 and 17 — which is a fair indication of how much consequential tidying a repeal would involve.

What stands in the way: Nobody has drafted this. See Status.

Status: ⚠️ **No Bill has been introduced in fifteen years to abolish the Supreme Court and return appeals to the Lords.** Three independent research passes each searched and found none. This measure would be starting from nothing.

4 • The arm's-length bodies

What David said: *"we need to abandon, kill off, privatise or renationalise fully into the structures of government and Parliament, all of these quangos" — and elsewhere, "these 400 or so quangos that are effectively running the country and everything else and sentencing guidance, you name it, advertising standards."*

What this appears to mean: Abolish, privatise, or absorb into departments the several hundred bodies that sit between ministers and the public.

The law that would have to change: There is no single Act. Every body has its own founding statute. The nearest existing tool is the Public Bodies Act 2011, and the search returned six of its sections — 1, 5, 7, 8, 11 and 12 — which are the powers to abolish, merge and modify public bodies by order.

What stands in the way: ⚠️ **The 2011 Act already gives ministers much of this power, and it has been used sparingly.** That is worth knowing before drafting a new one: the obstacle may not be the absence of a power.

Status: Attempted before, in the Public Bodies Act 2011. What happened to that attempt is the most useful precedent available and has not been examined.

5 • Judicial review

What David said: *"the system Blair created does not work because you know of judicial review of constant intervention by judges of the incompetence of quangos."*

What this appears to mean: Narrow the grounds on which courts can review ministers' decisions.

The law that would have to change: There is no single Act to repeal — judicial review is a creation of the courts, not of Parliament. Restricting it means writing a restriction into whichever Act confers the power in question. The search returned recent examples of Parliament doing exactly that: the Judicial Review and Courts Act 2022 (section 2), the Tribunals, Courts and Enforcement Act 2007 (section 11A), and the Border Security, Asylum and Immigration Act 2025 (section 40).

What stands in the way: ⚠️ **Courts have historically read general restrictions down to nothing.** Since a 1969 case called *Anisminic*, a clause saying "no court may question this decision" has been treated as protecting only lawful decisions — so an unlawful one is reviewable anyway. Recent governments have therefore used narrow, specific clauses instead of broad ones. That is a drafting lesson, not a legal barrier, but it is decisive for how a Bill would be written.

Status: The government's own review — chaired by Lord Faulks KC in 2021 — **looked for systemic judicial overreach and did not find it.** The Judicial Review and Courts Act 2022 followed and made modest changes.

6 • The permanent civil service

What David said: *"the most eminent public figure who passionately opposes the creation of the modern civil service, the Northcote-Trevelyan reforms, is Disraeli."*

What this appears to mean: Reverse the model of a permanent, politically impartial civil service appointed on merit, and return control of senior appointments to ministers.

The law that would have to change: Constitutional Reform and Governance Act 2010, Part 1 — the part that put the civil service on a statutory footing. The search returned ten provisions, including sections 2, 3, 10, 12 and 51 and five paragraphs of Schedule 1.

⚠️⚠️ **What stands in the way — and this is the most important single entry in the register:**

The target David names and the law that exists are not the same thing. David objects to the Northcote-Trevelyan reforms, which date from 1854. The 2010 Act is the modern written-down version of that settlement. **Repealing the 2010 Act would return civil service management to the Crown's own powers, but would leave the 170-year-old convention entirely intact** — and the convention, not the statute, is what actually determines how Whitehall behaves.

The analysis reached the same conclusion independently, and put it in the first line of the diagnosis: *"David misidentifies the target."*

Status: ⚠️⚠️ **No Bill has ever been introduced to repeal Part 1. No government or independent review has recommended it. No developed legal case for it exists.** Three independent research passes each searched and found nothing. And the most senior sympathetic review — Lord Maude's, of November 2023 — reaches the same diagnosis about civil service accountability and expressly keeps the permanent impartial service, on the basis that the alternative brings "delay and discontinuity".

Of the twelve, this is the one with the largest gap between what is said and what would have to be drafted.

7 • The Bank of England

What David said: *"the gross mismanagement of the Bank of England since its complete political independence in 1998."*

What this appears to mean: Reverse the operational independence given to the Bank in 1998.

The law that would have to change: Bank of England Act 1998. The search returned ten provisions — sections 12, 13, 19, 20 and 30F, three paragraphs of Schedule 1, plus section 6 of the Bank of England and Financial Services Act 2016 and section 3 of the Financial Services Act 2012.

What stands in the way: The obstacle is not legal. It is a settled cross-party consensus that independence is what keeps borrowing costs down — and, more awkwardly, the fact that independence lets whichever government is in office avoid blame for interest rate rises. **The people who would have to vote for this are the people it would make answerable.**

Status: David mentions this once in the whole corpus, as a complaint rather than a worked proposal. ⚠️

Confidence that this is intended as one of the twelve is lower than for the others. It is here so David can confirm or remove it.

8 • Diversity and inclusion practice in the civil service

What David said: *"then foisting the whole DEI agenda on the civil service, still worse under her..."*

What this appears to mean: End the diversity, equity and inclusion practice governing civil service recruitment and conduct.

The law that would have to change: ⚠️ **Possibly none.** The practice is administrative, not statutory. The search returned the Equality Act 2010 sections 1, 149 and 153, Schedule 18 and Schedule 26 — the same provisions as measure 2.

What stands in the way: The Institute for Government's published argument is that the public sector equality duty does not require any of the practice complained of. **If that is right, repealing section 149 would not by itself end it, and the lever here is guidance and ministerial direction rather than legislation.**

Status: ⚠️⚠️ **This is substantially the same measure as number 2.** See Part 3 — the two share six provisions of the Equality Act and eight court judgments between them.

9 • Gender self-identification

What David said: *"...you get the beginning with people like Maria Miller and Penny Mordaunt of the beginning of gender self identification for transsexuals."*

What this appears to mean: Reverse the move towards gender self-identification.

The law that would have to change: Equality Act 2010 sections 7 and 11 and Schedule 1; Gender Recognition Act 2004 section 9.

⚠️⚠️ **What stands in the way — this measure may already be delivered:**

Self-identification was never enacted in Great Britain. The Gender Recognition Act 2004 has always required a certificate granted on evidence. And in April 2025 the Supreme Court held, in *For Women Scotland Ltd v The Scottish Ministers*, that "sex" in the Equality Act means biological sex.

The position objected to has been substantially resolved by litigation, in the direction the programme wants, without any legislation at all. What remains is a gap between what the law now says and what public bodies are still doing — which is an enforcement problem, not a legislative one.

Status: Resolved by the courts. ⚠️ **This is a finding David and PopCon should welcome and should also find uncomfortable.** It supports the diagnosis — the courts did move. It complicates the remedy — because if the objectionable reading has gone, what is left to repeal?

10 · Publicly funded charities

What David said: *"the charities may most of them are no longer properly independent. They're sock puppets."*

What this appears to mean: Stop charities that receive public money from campaigning against the policy of the body funding them.

The law that would have to change: ⚠️ **David names no instrument, and this matters.** Legislation, the conditions attached to grants, and Charity Commission guidance are all available and produce entirely different results. The search returned Charities Act 2011 sections 2, 3, 4 and 74.

What stands in the way: Nothing legal. The analysis proposed the narrowest route — making the official who signs off departmental spending personally answerable for the grant conditions, rather than creating any new ban. **

Status: Rules already exist. The published analysis is that they are not enforced rather than that they are absent.

11 · The Sentencing Council

What David said: named within the quango complaint — *"sentencing guidance, you name it, advertising standards."*

What this appears to mean: Take sentencing guidelines out of the hands of an independent council and return them to ministers or Parliament.

The law that would have to change: Coroners and Justice Act 2009, section 120 — and sections 19 and 20 of the Sentencing Act 2026.

What stands in the way: The independence was a deliberate design choice in 2009, made to keep sentencing consistent and out of day-to-day politics. Reversing it means arguing that the reason for it was wrong, not that it was an accident.

Status: ⚠️ David names this as an example of the quango problem rather than as a separate measure. It is worked separately so the register can show what a single named body costs to deal with. **Whether it is one of the twelve is a question for David.**

12 · The Great Repeal itself

What David said: *"the campaign for the great repeal and restoration of the legislation passed under the Blair and Brown governments from 1997 to 2010"* — and on the standard it must meet: *"there's got to be that idea of the great repeal sounds easy. It's not. it will be fought every inch of the way by the whole of that establishment. So it's got to be legally watertight."*

What this appears to mean: One Act repealing the constitutional legislation of 1997 to 2010, passed all at once, because proceeding measure by measure would be defeated by whatever had not yet been reached.

The law that would have to change: ⚠️ **David defines the target by a date range, not by a list of Acts.** That is the first drafting question and it is unanswered. The search returned eleven provisions, spread across the Human Rights Act 1998 (sections 3 and 21), the Constitutional Reform Act 2005, the Victims and Prisoners Act 2024, and six sections of the Legislative and Regulatory Reform Act 2006 — that last one being the existing power to amend legislation by order, which is the nearest tool in the statute book to what an omnibus Act would need.

What stands in the way: The Supreme Court's decision in the first *Miller* case closes the shortcut. Ministers cannot do this with the Crown's own powers; it has to be an Act of Parliament, which means the House of Lords.

And the largest obstacle is stated by the programme's own side. Lord Wolfson KC, the Shadow Attorney General, wrote in October 2025 that leaving the Convention and repealing the Human Rights Act "*would not amount to a 'factory reset' of UK law*" and that achieving anything like that "*would involve a complicated legislative programme aimed at rolling back case law and relevant legislative provisions.*" **That is a description of a document nobody has yet written.** Part 2.1 is a first attempt at what it would contain.

Status: Never attempted at this scale. **Part 3 tests the claim that the measures must move together, and finds it is not supported in the way the programme assumes.**

2.1 Does repeal actually remove the rights?

This is the question the whole programme turns on. If repealing the Human Rights Act leaves the rights in place, then repeal is not the mechanism, and everything downstream changes.

David's claim, put plainly: repeal is not enough, because the courts have absorbed the Convention into ordinary English law. Repeal would leave the substance standing. Something stronger is needed.

David is right — and the confirmation comes from David's own side

Lord Wolfson KC, the Shadow Attorney General, in advice to the Leader of the Opposition dated 2 October 2025, at paragraph 345:

"It is, however, clear that leaving the ECHR and repealing the HRA would not amount to a 'factory reset' of UK law to its state pre-ECHR and pre-HRA; to achieve anything like that would involve a complicated legislative programme aimed at rolling back case law and relevant legislative provisions."

That is David's central claim, reached independently, by the most senior lawyer on David's own side of the argument.

It is quoted here from the published version. The document carries a confidentiality marking on every page but was published by the Conservative Party and reported widely; no privileged access to it is claimed or implied.

Why repeal does not restore 1997

Two lines of court decisions carry it, running in opposite directions from 1998.

Before the Act, English law already protected several of these rights on its own. Natural justice in *Ridge v Baldwin* (1964). Access to the courts in *ex p Leech* (1994) and *ex p Witham* (1998). Freedom of expression in *Derbyshire County Council v Times Newspapers* (1993), decided expressly on ordinary common-law grounds. And in *ex p Simms* (2000), Lord Hoffmann held that fundamental rights cannot be taken away by vague or general words in a statute — a rule of interpretation that owes nothing to the Human Rights Act.

Since 2013 the Supreme Court has repeatedly said that a rights question starts with English law, not with the Convention. *Osborn v Parole Board* (2013), *Kennedy v Charity Commission* (2014), *A v BBC* (2014), *Pham* (2015).

The clearest single example is R (UNISON) v Lord Chancellor (2017). Employment tribunal fees were struck down on the ordinary common-law right of access to justice. The Convention argument was secondary. Nothing in that decision depends on the Human Rights Act, and it would stand unchanged if the Act had never been passed.

But the absorption is uneven, and that cuts against David

In *Moohan v Lord Advocate* (2014) the Supreme Court declined to find a common-law right to vote. **So the common law is not simply a copy of the Convention.** It is strong on access to justice, natural justice and interpretation; thin or absent elsewhere.

⚠ A programme built on the assumption that ordinary law now replicates the Convention across the board would be built on a misreading — one that runs in David's favour. Which rights are actually absorbed has to be tested right by right, and has not been.

And one finding David will not have expected

Wolfson notes that the Convention's influence has *expanded* common-law protection rather than reduced it — because where English law already went further, there was no reason to cut it back to Convention level.

So leaving the Convention cannot mechanically shrink the common law back down. There is no reverse gear. Whatever is to be rolled back has to be rolled back deliberately, by legislation, naming what it is displacing.



And a limit on the remedy hiding in the same paragraph

Wolfson says the Convention's influence on English law is so widespread that **it would be impossible to give a complete account of the law affected.**

Read that carefully. It confirms the diagnosis and simultaneously limits the cure: **if no complete list can be made, no programme can claim to have rolled all of it back.** Any list — including one this platform could produce — is necessarily partial and must say so. A declared partial list is useful. An undeclared one would be exactly the defect this document exists to avoid.

2.2 "Annulment" — does the Henry VIII device do what it promises?

David's answer to the absorption problem is not repeal but **annulment**: declaring the provisions never to have had effect, on the model of Henry VIII's marriage annulments.

The answer is that it does not reach the problem David has identified, and this is the finding most likely to be unwelcome.

It aims at the wrong target

Declaring a statute never to have had effect reaches **the statute**. The problem David has identified lives in **the case law**.

Where a court has held that *the common law* protects a right, that holding never depended on the statute in the first place — so removing the statute does not remove the holding. *UNISON* is the demonstration: annul the Human Rights Act tomorrow and *UNISON* still stands, because it was not decided under it.

Repeal leaves the judicial reasoning in place. Annulment leaves it in place too. David's diagnosis and David's remedy do not meet.

The comparison is doing more work than it can bear

Annuling a marriage is a decision about the status of one relationship. Annuling a statute would operate on everything done under it across twenty-seven years — convictions, damages, decisions quashed, other statutes reinterpreted. Either those are saved, in which case it is not an annulment; or they are unpicked, which is not achievable.



But here the record turns back in David's favour, and this is the most useful thing in Part 2

The received wisdom is that clauses excluding the courts always fail. In *Anisminic* (1969) the House of Lords read a total exclusion down to nothing. In *Privacy International* (2019) the Supreme Court did the same to a modern one.

That wisdom is now out of date. In 2022 Parliament drafted an exclusion clause that worked.

Section 2 of the Judicial Review and Courts Act 2022 removed judicial review of certain tribunal permission decisions. It was upheld in *Oceana* (2023) and by the Court of Appeal in *LA (Albania)* (2023).

Four reasons it survived, and they are transferable:

11. **It was partial, not total.** Review was kept for serious jurisdictional error, fundamental breach of natural justice, an improperly constituted tribunal, and bad faith. A court asked to accept a complete exclusion refuses. A court asked to accept a bounded one need not.
12. **It closed the escape route expressly**, by bringing "purported" decisions inside the clause — the exact device *Anisminic* used to get round the 1950 wording.
13. **It restored a standard the courts had themselves preferred**, rather than inventing a new one.
14. **The body protected was an expert judicial one**, not a minister.



The lesson is precise, and it is not the one David has drawn. The device that worked was narrow, surgical and drafted around the known failure. The devices that failed were broad and declaratory. **Annulment, as described, is a broad declaratory device.**

The programme's difficulty is not that its aim is unachievable. It is that the mechanism named for it is aimed at the wrong target.

2.3 Four plans for the same problem — and two of them contradict

Within about a year, four documents on the same side of this argument have proposed **four different ways** of doing it. They agree on the diagnosis to a striking degree and disagree completely on the remedy.

On the published record, nobody has put that in front of David or PopCon.

	Who	What they propose	Timing
1	Starkey	Annul — declare the provisions never to have had effect	One Act, all at once. Sequential change is defeated by the remainder
2	Prosperity Institute (Braverman and Dampier, Sept 2025)	A Case Law Review Commission with a deadline, keeping some Strasbourg case law; annual correction Bills	Two Bills, six-month transition
3	Lord Wolfson KC (advice to the Leader, Oct 2025)	Seven options, and he declines to choose between them , saying the choice is political and outside the scope of legal advice	Six months' notice under Article 58
4	Lord Sumption (Nov 2025)	Leave the Convention, keep the substance — re-enact the same rights in an ordinary domestic statute	Not specified

⚠️ The finding: two of them recommend opposite things

Wolfson warns against a new Bill of Rights modelled on the Convention. Sumption proposes exactly that.

A former Justice of the Supreme Court and the Shadow Attorney General, writing within weeks of each other, both persuaded the present position is untenable, reach **opposite conclusions about the replacement**.

What turns on it: if Sumption is right, withdrawal is a change of *forum* — the rights survive in domestic form and the argument is about who interprets them. If Wolfson is right, a Convention-shaped domestic instrument brings the problem straight back in, so withdrawal has to be a change of *substance* too.

They produce entirely different Bills. A programme that has not chosen between them cannot be drafted at all.

Sumption's diagnosis, and why it matters most

His objection is precise, and it is **not to the words of the Convention**. He says he has no problem with the text. His objection is to the Strasbourg court's practice of treating it as a "living instrument" — expanding the text by analogy to produce a large number of new rights. He calls this "an essentially legislative process" and "a usurpation of the function of democratic legislatures."

And then this:

“We do not need the Human Rights Convention in order to protect human rights.”

That is section 2.1's proposition, stated by a man who sat on the court the programme proposes to abolish.

⚠️ **But note what he does with it, because it is the opposite of what the programme does.** For Sumption the conclusion is that the rights can safely be brought home — the protection does not depend on Strasbourg. For the programme, the conclusion is that the rights have taken root and must be pulled up. **Same premise, opposite remedy.** The premise is not in dispute. What to do about it entirely is.

The strongest case against, stated fairly

Dominic Grieve KC, former Attorney General, accepts the starting point: if the UK left the Convention but kept the Human Rights Act as a domestic bill of rights, rights here **"would continue to be pretty well protected."**

⚠️ **That is a significant concession and it should be printed**, because it means the domestic-protection argument is common ground across every serious figure in this section.

His objection is that domestic protection was never the point. The Convention was joined to raise standards elsewhere in Europe and to show willingness to be bound. He lists specific consequences of leaving:

- The **UK-EU Trade and Cooperation Agreement** would be put at risk
- **Horizon** participation would become impossible, because the data-sharing it requires rests on shared Convention adherence
- **Northern Ireland**, where he argues Convention adherence is written into the Belfast/Good Friday Agreement both explicitly and implicitly
- On frequency: since the Brighton Declaration of 2012, which he negotiated, adverse judgments breaking new ground have been very rare — on his recollection, two in the last year

⚠️ **That last point is checkable and should be checked**, because it is doing real work. If adverse judgments are as rare as he says, the practical case for leaving rests on their severity rather than their number.

And note a fifth option hiding in his answer: leave the Convention but keep the Human Rights Act as a purely domestic instrument. Nobody among the four proposes it, and it is closer to Sumption's position than to any of the others.

Two balance points, recorded without comment

- **Wolfson told the House of Lords in 2023 that he supported UK membership of the Convention.** His advice of October 2025 reaches a different conclusion. ⚠️ *To be checked against Hansard, not against anyone's characterisation, before this is relied on.*
- **There is an internal Conservative counter-position** from the Conservative European Forum, whose president is Sir David Lidington. The Forum reports that Wolfson said his advice should be reconsidered if meaningful reform of the Convention system were achieved. ⚠️ *That is the Forum's account. It must be checked against the advice itself. If it holds, it is a significant qualification the other three documents do not carry.*

2.4 What repeal does to Scotland, Wales and Northern Ireland

A Westminster repeal programme does not stop at Westminster, and this is the part of the programme with the least published work behind it.

The convention that gets in the way

Under what is called the **Sewel convention**, Westminster does not normally legislate on matters devolved to Scotland, Wales or Northern Ireland without the consent of the relevant parliament or assembly. It is a convention, not a law — the Supreme Court confirmed in the first *Miller* case that the courts will not enforce it.

So consent can be refused and Westminster can proceed anyway. What that costs is political, not legal, and it is a cost the programme has to be willing to pay knowingly.

⚠ **The most authoritative legal analysis of ECHR withdrawal does not address this at all.** The word "Sewel" does not appear in Lord Wolfson's advice, and neither does the Government of Wales Act. The nearest thing to an answer is a drafting instruction at his paragraph 374: that a manifesto should specify the UK would leave and repeal the Act **irrespective of the stance of devolved administrations.**

That is a political answer to a political problem, and it is a legitimate one. But it means the detailed work of amending the three devolution statutes has not been done by anyone.

The three statutes

The Human Rights Act is written into the founding legislation of all three devolved administrations. Repealing it without amending them would leave three statutes referring to an Act that no longer exists.

- **Scotland Act 1998** — section 29(2)(d) puts Convention rights beyond the Scottish Parliament's competence, and section 57(2) does the same for Scottish Ministers
- **Government of Wales Act** — ⚠ *the exact provision is disputed between the reading taken here and the Prosperity Institute's, and is not settled. Both are named rather than one chosen.*
- **Northern Ireland Act 1998** — sections 6 and 24 and Schedule 2

⚠ **The Northern Ireland position is different in kind, not just in detail,** because Convention adherence is bound up with the Belfast/Good Friday Agreement — an international treaty with Ireland, not just a domestic statute.

The two expert camps on Northern Ireland, and they disagree

Neither side is obviously right, and this document does not adjudicate between them.

- **Policy Exchange** (Conor Casey, Richard Ekins and Sir Stephen Laws, 2025) argue that withdrawal would not itself breach the Belfast Agreement, though some domestic rights protection would still be needed in Northern Ireland.
- **Northern Ireland public lawyers** including Aoife O'Donoghue and Colin Murray, with the Committee on the Administration of Justice, argue that Convention incorporation is deeply embedded in the Agreement's architecture and that withdrawal creates significant treaty consequences.

⚠ **And the two documents on the programme's own side contradict each other on this.** Wolfson relies on the Northern Ireland Court of Appeal in *Re Dillon* holding that the Convention falls outside Article 2 of the Windsor Framework, so there is no obstacle. The Prosperity Institute treats Article 2 as a live obstacle requiring primary legislation. **Incompatible readings of the same case law, published a month apart, on the same side.** An appeal to the Supreme Court is pending.

And the Equality Act does not apply there at all

This is the clearest example of why the register's entries matter.

The Equality Act 2010 does not extend to Northern Ireland, apart from three specified provisions — section 82 (offshore work), section 105(3) and (4), and section 199. Equal opportunities and discrimination are devolved matters.

Section 149 is not among the three. The public sector equality duty has never applied in Northern Ireland. A Westminster Bill repealing it would change nothing there.

The nearest equivalent is **section 75 of the Northern Ireland Act 1998**, which arises from the Belfast/Good Friday Agreement and came into force on 1 January 2000. ⚠️ **It is an analogue, not an equivalent:**

- It has **two duties of different strength** — "due regard" to promoting equality of opportunity, and the weaker "regard to the desirability" of promoting good relations, across only three of the grounds. Section 149 has one standard throughout.
- **It is enforced completely differently** — through equality schemes approved by the Equality Commission for Northern Ireland, with screening and impact assessments. Section 149 has no such machinery and is enforced by people going to court.

⚠️ **So if the objective is to remove public-sector equality duties across the United Kingdom, section 75 of the Northern Ireland Act 1998 is a separate target — and it is not on the list.** Because it derives from the Belfast Agreement, it is a materially harder one. That is a question for David, not a conclusion of this document.

One more thing falls out of the same section. The Equality Act does not apply uniformly even across Great Britain: section 190 and Part 15 do not extend to Scotland. **The Act is already a patchwork, and a repeal Bill has to be drafted against the patchwork rather than against the Act's title.**

2.5 Who else has published on this, and what they say

⚠ A note on method. * This section did not exist in the first plan. It was added after David's own reading turned up two senior figures — Lord Sumption and Dominic Grieve KC — that the research had missed entirely, because it had covered the law and never asked who else has published on this. Every item below was found in a handful of ordinary searches. The lesson: this kind of sweep is cheap and high-yield. *

This is not a literature review and does not claim to be complete. It is what a competent searcher finds quickly, set out so David can say what has been missed.

On the Human Rights Act — the best-covered measure by a distance

Who	Position
Lord Wolfson KC , Shadow Attorney General	Withdrawal justified; warns against a new Bill of Rights modelled on the Convention; says leaving would not be a "factory reset"
Lord Sumption , former Supreme Court Justice	Objects to Strasbourg's expansive interpretation, not to the text; would replace it with a domestic instrument that looks much the same
Prosperity Institute (Braverman and Dampier)	Withdrawal plus a Case Law Review Commission under a deadline
Dominic Grieve KC , former Attorney General	Against withdrawal — but concedes domestic protection would survive it

Still unworked and worth having: Sumption's 2019 Reith Lectures and *Trials of the State* argue at length that law has expanded into territory belonging to politics. **⚠ That is the programme's own diagnosis, made from the bench, six years before the programme.** It is the single most useful piece of corroboration nobody has used.

On the Equality Act — two findings that change what the register means

The repeal of section 149 is already announced Conservative policy. Kemi Badenoch, in a speech at the Institute for Government on 9 June 2026, said:

"That's why I can announce today that a Conservative government will repeal the Public Sector Equality Duty in its entirety. We do not need to replace the duty."

And she drew the distinction herself, naming the alternative:

"Reform... announced that they would abolish the entire Equality Act. So let me be clear, that would mean that it would be legal to discriminate against white people."

"The Equality Act protects a white man as much as a black woman. But the Public Sector Equality Duty does not. That's why we are going to overhaul the Act, starting by removing this Duty."

⚠ ⚠ That puts three positions on one line, and the programme is at the far end of it:

Position	Whose
Repeal the duty, keep the substantive protections	Conservative
Abolish the entire Equality Act	Reform UK
Repeal the Equality Act	The programme, on this reading

The programme's position is nearer Reform's than the Conservatives', and the Leader of the Opposition has publicly argued against it by name. That is a fact about the landscape a Bill would be drafted into, not a view about who is right.

The strongest published rebuttal came two days later: the Institute for Government (Stuart Hoddinott and Cassia Rowland, 11 June 2026) argue the duty does not require equality of outcomes or positive action, that frontline staff do not name it as a barrier, and that repeal misdiagnoses the problem.

Second finding: part of what the programme objects to has already been decided by the courts. See register entry 9 and Part 4.2.

On the civil service — the measure that looked thinnest, and is not

Lord Maude of Horsham's Independent Review of Governance and Accountability in the Civil Service, published 13 November 2023, examines exactly the question the programme raises.

⚠️ And it does not reach the programme's conclusion. The review states that it proceeds "on the basis that the UK's current system of a permanent and politically impartial Civil Service will be maintained." It proposes major changes to governance and appointments and **stops short of the remedy.**

That makes it the hardest document in this report for that measure, and hard in a more useful way than opposition would be. Maude is a former Cabinet Office minister and one of Whitehall's most persistent critics. He reaches the same diagnosis and stops. **The question it puts is not "are you right?" but "what does Maude know that makes him stop where he stops?"**

Responses to it exist across the spectrum and are all findable: the Institute for Government, the UCL Constitution Unit ("institutional fixes for political problems"), and Re:State.

⚠️ The UCL framing is the one the programme most needs to answer, because it is the strongest available objection to its whole method: that changing institutions does not fix problems that are political in origin.

And a slip in David's own words, flagged rather than corrected

In one recorded talk the transcript has David referring to "*the secretary of the First Division Civil Servants Association, Mark Sirota*". **Mark Serwotka led the PCS union, not the FDA,** whose general secretary is Dave Penman. Two different unions.

⚠️ This may be the transcription mishearing rather than the speaker mis-speaking, and a machine transcript cannot settle which. It is flagged because a report quoting it uncorrected would put an error into David's mouth in print — and because if it is David's error rather than the machine's, David would rather know.

2.6 What is already before Parliament



The report treated "what was tried before" as a historical question. It is not. **Two Bills are before the House of Commons now which do, in narrower form, two of the twelve things the programme proposes. Both are sponsored by Conservative MPs.**

Bill	Sponsor	What it does	Where it is
European Convention on Human Rights (Notification of Withdrawal) Bill	Mike Wood MP (Kingswinford and South Staffordshire)	Gives the Prime Minister power to notify withdrawal from the Convention under Article 58	First reading 22 June 2026. Second reading listed for 11 September 2026
Public Sector Equality Duty (Repeal) Bill	Joy Morrissey MP (Beaconsfield)	Repeals section 149 and Schedule 18 of the Equality Act 2010, with consequential provision	First reading 22 June 2026. Second reading listed for 5 March 2027

What this means in practice, stated carefully

Both are Presentation Bills. A backbencher can present a Bill without a debate, and it goes into a queue. Bills of this kind rarely reach a substantive second reading and almost never become law without government time. Parliament's own website marks forward dates as provisional.

So this is not a prediction that either will pass. What it is, is this: **the drafting question the programme has not yet answered has already been answered twice, by other people, in the form of actual long titles.**

 **And neither Bill has any published text at all.** Parliament's page for each records: *"There are no publications for this Bill yet."* They state an intention and no mechanism. **That is why the work in Part 4.2 is not duplicating anyone — the consequential detail has not been written by anybody.**

The three long titles answer the question differently

- **Wood's Bill takes withdrawal only.** It does not repeal the Human Rights Act. That is the "change of forum" option.
- **Morrissey's Bill takes section 149 and Schedule 18 only.** It does not touch the Act's substantive anti-discrimination provisions.
- **On this reading the programme takes the whole Act in each case.**

These are the narrowest available versions of two of the programme's measures, and they are the ones that have reached the Order Paper. That is information David should have, whether they agree with the narrowing or not.

The counter-movement, also live, and with government time behind it

Bill	What it does	Where it is
Public Office (Accountability) Bill — a Government Bill, from a Labour manifesto commitment	Creates a statutory duty of candour on public authorities and officials, new criminal offences, and codes of ethical conduct; replaces the common-law offence of misconduct in public office	Commons third reading 14 July 2026; Lords second reading 1 September 2026

 **This runs in precisely the opposite direction to the programme, and it is the one with government time.** Where the programme would take civil service management back to the Crown's own powers, this Bill adds statutory duties to officials. **A programme that repeals the 2010 Act while this is on the statute book has to say how the two fit together** — and if it becomes law first, it is a thirteenth thing to unwind rather than a twelfth.

Earlier attempts, verified

Attempt	What happened
Bill of Rights Bill 2022 (Dominic Raab) — would have repealed the Human Rights Act and replaced it, staying in the Convention	Introduced 22 June 2022; paused; abandoned 27 June 2023. Never reached a second reading
Peter Bone MP, British Bill of Rights and Withdrawal from the ECHR Bill 2022-23 — withdrawal <i>plus</i> a domestic Bill of Rights, the closest earlier match to the programme	First reading 20 June 2022. No further stage recorded
Nigel Farage MP , ten-minute-rule motion on withdrawal, 29 October 2025	Ayes 96, Noes 154. Rejected; no Bill resulted

 **That division is the only hard number in this report on how the present House of Commons votes on withdrawal.** 96 for, 154 against, on a thinly attended vote. It is not a forecast. It is the only sounding taken.

2.7 What actually happened between 1997 and 2010

The programme is a proposal to undo something. This section sets out what that something was, what the people who built it said they were doing, and whether they intended the result.

⚠ A note on sourcing. This section draws on published books, official papers and parliamentary records. Because it deals with intellectual history rather than the statute book, much of it comes from named published work rather than from a search of the law. **Every item carries a mark:**

- **[verified]** checked against the source
- **[corroborated, unchecked]** — named independently by more than one research pass, not yet checked against the source
- **[single mention, unchecked]** — named once only; a lead, not a citation

What was built

Six things, over thirteen years, by different hands and for different stated reasons.

Year	What	What it did
1998	Human Rights Act	Made Convention rights enforceable in UK courts, with a deliberately weak remedy — a declaration of incompatibility that changes nothing legally
1998–99	Devolution statutes	Scotland, Wales, Northern Ireland — each with Convention rights written into the limits of what the devolved bodies may do
2005	Constitutional Reform Act	Took the Lord Chancellor out of the judiciary, created the Judicial Appointments Commission, and moved the final court out of the House of Lords
2009	Coroners and Justice Act	Created the Sentencing Council as an independent body
2010	Constitutional Reform and Governance Act, Part 1	Put the civil service on a statutory footing — the Civil Service Code, merit recruitment, and the Civil Service Commission
2010	Equality Act	Consolidated earlier discrimination law and added the public sector equality duty

⚠ They were not one project. Different departments, different ministers, different arguments, spread over more than a decade. **Treating them as a single design is the first thing a critic will attack**, and the programme's own case is stronger if it argues that the *effect* was cumulative rather than that the *intent* was coordinated.

What the architects said they were doing

This is where the record is clearest, and it does not say what the programme's stronger version assumes.

On rights. The 1997 white paper was called *Rights Brought Home* [corroborated, unchecked]. Its stated purpose was to let people enforce Convention rights in British courts instead of spending years and large sums going to Strasbourg. The Convention was presented as a British-drafted instrument the UK had helped write.

⚠️ **And the sovereignty question was not overlooked — it was the central design problem.** Jack Straw's Second Reading speech on 16 February 1998 [corroborated, unchecked] is the primary source. He said the most fundamental question was how to incorporate the Convention while *strengthening* rather than undermining parliamentary sovereignty, expressly rejected giving courts power to set aside Acts of Parliament, and said:

| "The sovereignty of Parliament must be paramount."

⚠️ **Named by two independent passes with that quotation. It is Hansard-checkable and should be checked before it is quoted in a printed document — but if it holds, it is decisive for what follows.**

That is not retrospective justification. It is the contemporaneous ministerial explanation of the architecture — and the declaration of incompatibility, which deliberately changes nothing, is the mechanism that was chosen precisely to preserve Parliament's last word.

On the courts. The 2005 reforms were announced in a June 2003 reshuffle, not after a royal commission [corroborated, unchecked]. **That origin is itself part of the argument** and the programme should use it: a change to the highest court in the land, made without a commission, without a green paper, and announced alongside a ministerial reshuffle.

Lord Bingham argued publicly for it in *The Times* in June 2003 [corroborated, unchecked], on the ground that judges sitting in the legislature was an anomaly. **What he wanted was explicitly not the American model** — a court that could not strike down Acts of Parliament.

⚠️ **And Lord Irvine, the Lord Chancellor removed by the same reshuffle, opposed both the abolition of his office and the creation of the court** [corroborated, unchecked], and later said the decision was taken without proper advice. **The strongest contemporaneous criticism of the 2005 Act came from inside the government that made it.**

On the civil service. The 2010 Act completed a debate running since the 1990s. **Its stated aim was to lock existing Northcote-Trevelyan values into statute so that a future government could not quietly unpick them by Order in Council** [corroborated, unchecked].

⚠️ **Note what that means for the programme's sixth measure.** On this account the 2010 Act **codified** rather than created. Repealing it returns the position to what it was in 2009 — which was not a patronage system.

Bingham himself, and why he is misread by both sides

Lord Bingham was Master of the Rolls, Lord Chief Justice and Senior Law Lord — the only person to have held all three offices. *The Rule of Law* (2010) [corroborated, unchecked] is the book the programme is arguing against, and David has written about it directly, in *Bingham's failed revolution*, *The Critic*, March 2025 [verified].

Bingham's conception is deliberately a "thick" one: not merely that government follows the rules it enacts, but that fundamental rights are protected, that officials act lawfully, that courts adjudicate fairly — and, in his eighth principle, **that the state complies with its international legal obligations as with its national law.**

⚠️⚠️ **That eighth principle is the crux. It is the single most concise statement of the position the programme attacks, and it is where the argument should be joined.**

But there is a qualification both sides routinely lose. Bingham did not conclude that Parliament had ceased to be sovereign. His book contains an extended treatment of the rule of law and parliamentary sovereignty, and in a 2008 journal article [corroborated, unchecked] he rejected the suggestion — made by some judges in the *Jackson* case — that courts might one day refuse to apply an Act of Parliament.

His thesis is that a sovereign Parliament ought to legislate consistently with deeper principles. It is not that judges acquire power to stop it.

⚠️ **A well-informed critic will use Bingham against the programme's stronger version, and a proponent who has treated him as the patron saint of judicial supremacy will be caught out. The accurate criticism of Bingham is not that he claimed too much power for courts. It is that his eighth principle makes international obligation part of the rule of law itself — which is a much more interesting argument, and a harder one.**

⚠️⚠️ **Was "government by unaccountable experts" intended?**

The documentary answer is: partly yes as to independence, no as to supremacy — and the distinction is what the whole dispute turns on.

These were deliberate design objectives, stated at the time:

- Judges should not owe appointment or promotion to political patronage
- Civil servants should be recruited on merit and serve successive governments
- Rights should constrain public authorities regardless of electoral popularity
- Equality considerations should happen before decisions, not only through later claims

These were not: transferring ultimate legislative authority to judges. The refusal to permit strike-down was designed to prevent exactly that, and it is on the record.

So the weak version of the programme's historical claim is well supported and the strong version is not.

⚠️⚠️ **And the serious version of the case is better than either, because it does not depend on intent at all:**

*You need not formally give judges sovereignty for legal constraint to displace political choice. If Parliament legislates through broad concepts — proportionality, necessity, reasonable justification, due regard — and courts progressively determine what those words mean, then substantial political decisions migrate into adjudication, **even though Parliament technically retains the power to reverse any of it.***

That proposition does not require anyone to have intended anything. It is a claim about what happens when vague standards are put into statute, and it is testable against the record measure by measure.

It is also the version this document's own findings support. Part 4.2 shows exactly that mechanism at work: a duty to have "due regard", whose content only a court can settle after the fact.

⚠️ **Recommendation: this is the strongest available framing of the programme's historical case, and it is what the serious literature actually argues.** It is offered as an option, not urged.

What was done about it before, and what happened

The programme is not starting a new movement. Since about 2010 governments and Parliament have repeatedly tried to restore political discretion, and the results are instructive.

Attempt	Outcome
Commission on a Bill of Rights, 2012 ●	Split. Majority favoured a domestic bill of rights while staying in the Convention ; two members dissented
Independent Review of Administrative Law (Lord Faulks), 2021 ●	Commissioned to find judicial overreach. Found none systemic . Recommended modest procedural change
Judicial Review and Courts Act 2022 ✓	Enacted. Modest — but it contains the one court-exclusion clause that worked. See Part 2.2
Independent Human Rights Act Review (Sir Peter Gross), 2021 ●	Government-commissioned, retired appeal judge in the chair, a former First Parliamentary Counsel on the panel. Recommended keeping the Act
Bill of Rights Bill 2022 ✓	The only real legislative attempt. Abandoned 2023 without a second reading
Retained EU Law (Revocation and Reform) Act 2023 ●	Removed the supremacy of EU law in domestic interpretation. ⚠️ Its sunset clause — the model the Prosperity Institute's Case Law Review Commission is drawn from — was abandoned before Royal Assent
Safety of Rwanda (Asylum and Immigration) Act 2024 ●	⚠️⚠️ The closest thing to the programme's method actually enacted . Disapplied specific sections of the Human Rights Act for a defined class of decision, and directed courts to treat a factual question as settled
Farage ten-minute-rule motion, Oct 2025 ✓	Ayes 96, Noes 154
Wolfson advice and Conservative policy, 2025 ✓	Withdrawal adopted as party policy
Wood and Morrissey Bills, 2026 ✓	Before the Commons now — see Part 2.6

Key — ✓ verified · ● named independently by more than one research pass, not yet checked · ○ named once only, a lead rather than a citation

⚠️⚠️ **The Safety of Rwanda Act is the most important row in this table and the programme should study it closely.** It is the method — disapply named provisions for a named purpose — executed at small scale. **What it cost politically, how the courts handled it, and whether it achieved its object are the best available evidence about the programme's own method**, and nobody appears to have used it that way.

And the pattern across the table is worth stating plainly: every broad attempt failed, and every narrow one succeeded. That is the same finding as Part 2.2, arrived at from a completely different direction.

3 · Do the twelve measures have to move together?

The programme's central structural claim is that they do. Undo any one, and the others are still standing to reproduce the effect complained of — so a government proceeding one Bill at a time will be defeated by whatever it has not yet reached. **That is the argument for one omnibus Act, and everything about delivery follows from it.**

Nobody has tested it. It is tested here, three ways.

The analysis was run twelve times, once per measure, **each run blind to the other eleven**. No run was told what any other run found. That matters for reading what follows: where twelve independent runs converge, the convergence means something, because it was not designed in.

! What follows is a test, not a verdict. Its limits are at the end and they are real.

Test one: do the measures touch the same law?

If the measures interlock as claimed, the twelve runs should keep landing on the same Acts.

Across all twelve, 23 Acts of Parliament were cited. Nineteen were cited by exactly one measure.

Act	Measures touching it
Equality Act 2010	Equality Act · DEI · gender self-ID — three measures
Equality Act 2006	Equality Act · DEI
Constitutional Reform Act 2005	Supreme Court · Great Repeal
Human Rights Act 1998	HRA · Great Repeal

And at the level of individual sections, **seven shared provisions in the entire programme** — six of which are the same pair of measures.

Strip out the two overlaps that are the programme restating itself (the Great Repeal contains the other measures by definition) **and the entire cross-measure overlap in the statute book is three measures sharing the Equality Act.**

!! Finding one: three of the twelve measures are one measure

The Equality Act, DEI practice in the civil service, and gender self-identification all converge on the same statute. The first two share **six sections and eight court judgments** between them.

This was not designed in. The three were built separately, from separate statements of David's, on separate days. **They converged because the law does.**

What that means practically:

- **DEI has no separate legislative existence.** Its evidence is the Equality Act measure's evidence. Drafted as a distinct Bill it either duplicates the Equality Act repeal or contradicts it.
- **Gender self-identification is resolved by litigation rather than legislation**, and what remains of it sits inside the same Act.
- **So this is one workstream with three faces, not three measures.**

! The programme is more accurately described as ten measures than twelve — and saying so costs David nothing. It removes two Bills from a programme whose main constraint is parliamentary time.

! Finding two: outside that cluster, the measures are markedly separable

Nineteen of twenty-three Acts are touched by one measure only. The Bank of England Act appears in the Bank of England measure and nowhere else. The Sentencing Council's founding provisions appear in that measure and nowhere else. The charities framework appears in the charities measure and nowhere else.

On this evidence, most of the programme could be legislated one measure at a time without the remainder defeating it — which is the opposite of the claim the omnibus Act rests on.

!! **This is the weaker of the two findings and must be read with its limit attached.** Absence of shared citations is not absence of dependency. Two measures can be deeply interdependent without citing the same Act — through convention, through institutional practice, or through something the search had no reason to look for. **Each run was asked about its own measure. Nothing was hunting for cross-links.**

So this is evidence that the measures are separable in the statute book. It is not proof that they are separable in politics. The first finding is strong because convergence was not designed in. The second is suggestive because nothing was looking for it. Both are stated at their true weight.

Test two: where the courts join measures the statute book does not

Ninety judgments were cited across the twelve runs. Seventeen appear in more than one measure — **and the groupings do not follow the statutory ones.**

Shared	Measures	What the shared cases are about
3 judgments	Quangos · civil service · DEI	What public authorities may lawfully do, and who answers for it
8 judgments	Equality Act · DEI	The Equality Act cluster again
4 judgments	Quangos · civil service	Delegated decisions and lawful authority
<i>For Women Scotland</i>	Supreme Court · gender self-ID	The Court doing the thing the programme wants done

!! **The quangos / civil service / DEI cluster is a real interlock that the statute book does not show.** Those three share no Act at all, but they share judgments about what public bodies may lawfully do and who is accountable for it. **That is the accountability question underneath all three** — and it is the strongest evidence in this document for the programme's structural claim. It was found by the courts, not by the drafters.

So the honest answer to "do they interlock" is: not through the statutes, and partly through the case law. Which is the same observation as Part 2.1: **what binds these measures together lives in the judgments, not in the Acts.**

!! Test three: where the analysis disagreed with the programme

The twelve runs were not asked to agree. **On four of twelve measures the analysis proposed a different remedy from David's**, in its own drafted plan, having read the record.

These split into two classes, and the difference matters.

(a) Reached on material not supplied

Measure	David's remedy	What was proposed instead
Bank of England	Reverse operational independence	It diagnosed the 1998 Act as having " <i>reclassified the inherently political and distributional choices of monetary policy as a technical exercise</i> " — and proposed attacking the legitimacy of the consensus by exposing the political choices disguised as technical ones, rather than repealing the Act
Charities	Stop publicly funded charities campaigning	" <i>Fix accountability for the funding decision with the grantor, not by creating a new blanket ban</i> " — making the official already personally responsible for departmental spending answerable for the grant conditions

 **Neither was seeded.** For the Bank, only the Act that conferred independence was supplied. For charities the *available* instruments were supplied, and David names none — **the choice between them was not supplied.**

Charities is the sharper of the two. Given a measure with no stated instrument, it did not invent one for David. It found where the accountability actually sits and proposed the narrowest thing that would reach it.

(b) Where the counter-material was supplied, and built on

Measure	What it did with it
Civil service	" <i>The proposer misidentifies the target. The obstacle is not the Constitutional Reform and Governance Act 2010...</i> " — then proposed forcing a direct argument about the 1854 settlement instead of a repeal it calls legally ineffective
Gender self-ID	Opened on <i>For Women Scotland</i> having " <i>resolved the legal ambiguity</i> ", and proposed using existing powers to enforce the law as it now stands — no new legislation at all
Judicial review	Opened on the government's own review " <i>finding no systemic judicial overreach</i> " before setting out the case anyway
Supreme Court	" <i>Re-establish parliamentary supremacy over constitutional interpretation not by abolishing the court</i> " — but by creating a standing parliamentary committee to scrutinise and correct judicial interpretation of constitutional statutes

 **That material was in the inputs, so these four are not independent findings and are not presented as any.** What they show is narrower and still worth printing: **given evidence that cut against the measure, the**

analysis did not discard it, bury it, or argue round it. It reorganised the remedy around it and said so in the first line.

That is the behaviour this whole report is asking of a legislative process — which is why the line between (a) and (b) is drawn here rather than quietly smudged.

What this section hands back

15. **The interlock claim is not supported in the statute book.** Most of the programme is separable.
16. **It is partly supported in the case law**, in one specific place: quangos, the civil service and DEI share judgments about public authority accountability while sharing no statute. ⚠️ **If the omnibus argument is right, this is where it is right** — and it is a narrower, more defensible version of the claim than the one now made.
17. **Three measures are one measure.** The Equality Act strand should be drafted once.
18. **On four measures the analysis reached a different remedy** — on two of them from material that was not supplied.

⚠️ What this test cannot tell you

- **Whether measures depend on each other other than through shared law.** Shared citations are a proxy for dependency, not a measure of it.
- **Whether the nineteen single-measure Acts are genuinely isolated**, or merely searched in isolation. A cross-measure search has never been run and is the obvious next thing to do.
- ⚠️ **Six of the eleven runs were cut short at six research questions by a spending limit.** Some of what those runs record as gaps are **questions never asked, not questions asked and unanswered** — and the output does not distinguish the two. **No count in this section is a limit on what can be found.** It is its reach on a capped run.

3.2 · The Great Repeal as a single instrument

The question examined

The problem, as stated: The constitutional changes made between 1997 and 2010 interlock, so that undoing any one of them leaves the others in place to reproduce the effect complained of. A government that proceeds measure by measure will be defeated by whatever it has not yet reached, and will run out of time and political capital before it finishes.

What David proposes: One Act repealing the constitutional legislation passed between 1997 and 2010, drafted to be, in the proposer's words, legally watertight, and passed at once rather than in sequence.

What David has ruled out: Sequential repeal. Reform of individual institutions. Any approach that depends on the cooperation of the bodies being reformed.

The evidence base

52 pieces of evidence, 39 with a full citation and 35 with a working link.

Kind of source	Pieces
Acts of Parliament	17
Not attributed to a type	13
Parliamentary debate	10

Kind of source	Pieces
Select committee material	8
EXPLANATORY_NOTE	2
Court judgments	2

Understanding the terrain: 302 retrieved, 40 read; 9 cited · 1 of 1 queries written

Evidence base: 7 questions asked; reviewed 600 sources; 39 findings, 7 running the other way; 8 stated gaps
—  an existing power may remove the need for a Bill · 7 of 7 queries written

What is wrong, and why it persists

The constitutional reforms of 1997-2010 are not merely an interlocked set of statutes but have created a new, self-defending constitutional order. This order is entrenched through a vast body of case law, new political conventions (e.g., the Sewel Convention), and international treaty obligations (the Belfast/Good Friday Agreement), which reproduce the effects of the reforms even if the parent Acts are repealed. As Lord Wolfson KC's advice, cited by the proposer, indicates, a simple repeal would not achieve a 'factory reset'.

3 causes were identified. Each is given with the reason recorded for why it has not already been fixed.

Cause 1 — MATERIAL. Constitutional reforms between 1997 and 2010 were enacted as distinct, yet interconnected, pieces of primary legislation.

Why it persists: These reforms, including devolution and the HRA, were considered 'remarkably successful' and their constitutional importance was recognized, leading to a lack of impetus for a coherent repeal strategy. The lack of a coherent process for constitutional change at the time meant interdependencies were not fully addressed for future reversal.

Cause 2 — MATERIAL. Key constitutional acts, such as the Human Rights Act 1998, contain explicit protections or are considered to have particular constitutional importance, making their amendment or repeal complex.

Why it persists: The HRA is explicitly protected from amendment or repeal by orders under the Legislative and Regulatory Reform Act 2006, and is considered a 'constitutional backbone' of devolution, requiring consent from devolved administrations for reform. This makes any attempt at comprehensive repeal highly contentious and legally challenging.

Cause 3 — CONTRIBUTORY. The legal and political system has historically lacked a coherent process or consensus for comprehensive constitutional change, making a 'factory reset' appear daunting.

Why it persists: In 2009, there was a recognized 'lack of coherence and shape' to the process of constitutional reform and 'no real process by which to engage with citizens to ensure that there is some consensus on constitutional change'. This systemic issue means that even with parliamentary sovereignty, the political and procedural pathway for a single, comprehensive repeal act is undeveloped.

The approach proposed

The approach is to use a single, omnibus Act of Parliament as a political and procedural vehicle to ensure the programme is passed 'at once', preventing death by a thousand cuts. However, the Act itself must be internally differentiated, with specific legal mechanisms tailored to dismantle each distinct component of the 1997-2010 settlement—domestic statutes, devolved powers, international treaty obligations, and derivative case law. This asserts Parliamentary sovereignty while acknowledging and navigating, rather than ignoring, the different sources of legal and political resistance.

What would actually have to be done

Each step, and who would have to do it.

1. Identify all primary legislation enacted between 1997 and 2010 that significantly altered the UK's constitutional arrangements, cross-referencing with the proposer's understanding of the target date range and any explicit statutory protections (e.g., for the Human Rights Act 1998).

Who does it: Cabinet Office Legal Advisers, working with an independent panel of constitutional law experts.

2. Draft a single 'Constitutional Reform Act' that explicitly repeals, amends, or re-enacts with modifications, all identified legislation and relevant statutory provisions. The drafting must be 'legally watertight' to withstand anticipated legal challenges, as highlighted by the proposer and Lord Wolfson KC's advice regarding a 'factory reset'.

Who does it: Office of the Parliamentary Counsel, under direct instruction from the Attorney General's Office, with external constitutional law counsel review.

3. Develop a comprehensive parliamentary strategy for the passage of the 'Constitutional Reform Act', anticipating significant opposition and leveraging the government's mandate for comprehensive reform. This includes preparing detailed explanatory notes and impact assessments.

Who does it: Leader of the House of Commons, Chief Whip, and the relevant policy department (e.g., Ministry of Justice or Cabinet Office).

4. Establish a dedicated implementation task force immediately following the Act's passage to manage the transition and address any unforeseen legal or administrative complexities arising from the comprehensive repeal, ensuring a coordinated unwinding of the previous framework.

Who does it: Cabinet Office, reporting directly to the Prime Minister, with representatives from all affected government departments and devolved administrations.

The law as it stands

11 distinct provisions were retrieved and read. Each is quoted from the statute itself.

Legislative and Regulatory Reform Act 2006, s.1 — Power to remove or reduce burdens

A Minister of the Crown may, by order under section 1 of the Legislative and Regulatory Reform Act 2006, make any provision considered to serve the purpose of removing or reducing any burden, or overall burdens, resulting directly or indirectly for any person from any legislation.

Legislative and Regulatory Reform Act 2006, s.8 — Explicit protection of Human Rights Act 1998

An order made under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot make provision amending or repealing any provision of the Human Rights Act 1998. This directly contradicts the proposal's aim to repeal or amend the HRA via a single act, if that act were to be an order under this power.

Legislative and Regulatory Reform Act 2006, s.12 — Parliamentary procedure for orders

Orders made under Part 1 of the Legislative and Regulatory Reform Act 2006 must be made by statutory instrument.

Legislative and Regulatory Reform Act 2006, s.18 — Super-affirmative resolution procedure

The super-affirmative resolution procedure for orders under the Legislative and Regulatory Reform Act 2006 requires the Minister to have regard to representations, resolutions of either House, and recommendations of parliamentary committees during a 60-day period.

Legislative and Regulatory Reform Act 2006, s.14 — Explanatory document requirements

When a Minister lays a draft order under the Legislative and Regulatory Reform Act 2006, an accompanying explanatory document must explain the powers used, introduce and give reasons for the provision, and explain why the Minister considers certain conditions are met.

Legislative and Regulatory Reform Act 2006, s.10 — Restriction on amending/repealing Northern Ireland legislation

An order under Part 1 of the Legislative and Regulatory Reform Act 2006 may not make provision to amend or repeal any Northern Ireland legislation, except by virtue of section 1(8) or 2(7).

Human Rights Act 1998, s.21 — HRA definition of 'amend'

In the Human Rights Act 1998, 'amend' is defined to include 'repeal and apply (with or without modifications)'.

What the courts have said

1 judgments were retrieved and read.

R (on the application of Miller and another) v Secretary of State for Exiting the European Union — Prerogative powers cannot alter domestic constitutional law

The Supreme Court, in *R (on the application of Miller and another) v Secretary of State for Exiting the European Union* (Miller I), established that changes to domestic law, particularly those affecting constitutional arrangements, cannot be made through.

Evidence that runs the other way

14 findings cut against the proposal as drafted. They are listed because they are the most useful part of the run.

Explicit protection of Human Rights Act 1998

An order made under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot make provision amending or repealing any provision of the Human Rights Act 1998. This directly contradicts the proposal's aim to repeal or amend the HRA via a single act, if that act were to be an order under this power.

Source: Legislative and Regulatory Reform Act 2006, s.8

Restriction on amending/repealing Scottish Parliament legislation

An order under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot make provision that would be within the legislative competence of the Scottish Parliament if contained in an Act of that Parliament. This prevents the amendment or repeal of Acts of the Scottish Parliament, instruments made under them, or Westminster Acts concerning devolved matters.

Source: Explanatory Notes to Legislative and Regulatory Reform Act 2006

Restriction on amending/repealing Northern Ireland legislation

An order under Part 1 of the Legislative and Regulatory Reform Act 2006 may not make provision to amend or repeal any Northern Ireland legislation, except by virtue of section 1(8) or 2(7).

Source: Legislative and Regulatory Reform Act 2006, s.10

No compelling case for HRA reform

The Joint Committee on Human Rights concluded in 2021 that, based on the evidence heard, there was 'no compelling case for reform or amendment of the HRA'. This was reiterated in 2022, stating 'a case has not been made for replacing the Human Rights Act with the British Bill of Rights in the form proposed'.

Source: Report: Third Report - The Government's Independent Review of the Human Rights Act — Human Rights (Joint Committee)

Opposition to HRA repeal without devolved consent

The Joint Committee on Human Rights recommended that the Government should not pursue reform of the HRA without the consent of the Scottish Parliament, the Welsh Senedd, and the Northern Ireland Assembly.

Source: Report: Third Report - The Government's Independent Review of the Human Rights Act — ¶36 — Human Rights (Joint Committee)

Challenges to the proposal

48 open challenges. Every one is a question the proposal has not yet answered.

Does a power to do this already exist? — 3

HRA repeal exceeds LRR Act power — The proposal aims to repeal or amend the Human Rights Act 1998 as part of a single 'Constitutional Reform Act'. However, the Legislative and Regulatory Reform Act 2006, which provides a power for Ministers to make orders to remove burdens, explicitly prohibits such orders from amending or repealing the Human Rights Act 1998. This means that if the 'Constitutional Reform Act' were intended to be an order under the 2006 Act, it would exceed the limits of that power regarding the HRA.

Devolved matters exceed LRR Act power — The proposal seeks to repeal or amend all targeted legislation from 1997-2010. Given that the period includes significant constitutional reforms related to devolution (e.g., Scotland Act 1998), any order made under the Legislative and Regulatory Reform Act 2006 would be prohibited from making provision within the legislative competence of the Scottish Parliament or amending/repealing Northern Ireland legislation. This suggests that a single order under this Act would not be able to achieve the comprehensive repeal across all identified legislation if it touches on devolved matters.

Constitutional reform as 'burden reduction' — The Legislative and Regulatory Reform Act 2006 grants power to a Minister of the Crown to make orders to remove or reduce 'burdens'. The proposal's objective is a 'Constitutional Reform Act' to repeal or amend constitutional legislation. It is unclear whether the comprehensive repeal of constitutional legislation, as envisioned by the proposal, would fall within the definition of 'removing or reducing any burden' as defined in section 1(3) of the 2006 Act, which focuses on financial cost, administrative inconvenience, obstacles to efficiency, or sanctions.

What the law says now — 4

Undefined scope of target legislation — The proposal defines the target legislation by a date range (1997-2010) rather than a specific schedule of Acts. A comprehensive list of primary legislation enacted within this period that significantly altered UK constitutional arrangements needs to be identified to define the scope of the 'Constitutional Reform Act'.

Overriding HRA's statutory protection — The proposal aims to repeal or amend all targeted legislation. Given the explicit protection of the Human Rights Act 1998 by the Legislative and Regulatory Reform Act 2006, Section 8, the 'Constitutional Reform Act' would need to explicitly address and override this protection, potentially requiring specific drafting to ensure legal efficacy.

Clarity on 'amend' vs 'repeal' for HRA — The Human Rights Act 1998 defines 'amend' to include 'repeal and apply (with or without modifications)'. The proposed 'Constitutional Reform Act' should clarify whether it intends a full repeal, or amendment with modifications, for the HRA and other targeted Acts, and how this definition interacts with its objectives.

How the courts have read it — 2

Clarity on HRA's 'explicit protection' — The proposal states that the Human Rights Act 1998 is 'explicitly protected from amendment or repeal by orders made under the Legislative and Regulatory Reform Act 2006'. While Section 8 of the 2006 Act outlines restrictions on the use of regulatory reform orders, it does not explicitly protect the HRA from repeal by primary legislation. The proposal should clarify the nature of this 'explicit protection' and how it would be addressed by a new comprehensive Act, given the principle of parliamentary sovereignty.

Strategy for rolling back case law — The proposal refers to Lord Wolfson KC's advice regarding a 'factory reset' and a 'complicated legislative programme aimed at rolling back case law and relevant legislative provisions'. While this corroborates the diagnosis, the proposal does not detail how the 'Constitutional Reform Act' would specifically address the rolling back of case law, which is a distinct challenge from repealing statutory provisions.

Where this came from — 2

Original perceived success of reforms — The proposal aims to repeal or amend all targeted legislation from 1997-2010. However, the sources indicate that some of these reforms, such as devolution and the Human Rights Act, were considered 'remarkably successful' at the time of their enactment and were seen as having 'particular strength'. The proposal does not explicitly address the original perceived success or constitutional importance of these specific acts, which could be a point of contention during the 'anticipated significant opposition'.

Intent behind distinct enactments — The proposal states that the 'interlocking nature' of the reforms is a pivotal obstacle. While the proposer describes this interlock, the sources do not explicitly detail how this interdependency was deliberately designed or if it was an unforeseen consequence of enacting distinct pieces of legislation. Understanding the original intent behind the distinct enactment of these reforms could inform the strategy for a comprehensive repeal.

Evidence for the causes — 2

Unquantified cultural and strategic causes — The proposal states that the 'culture within the civil service and political establishment rewards maintaining the status quo and avoiding direct responsibility for radical constitutional change' and that there is a 'lack of a clear, comprehensive legislative strategy'. While plausible, these causal claims are not supported by evidence from the provided sources. The diagnosis would be strengthened by evidence that quantifies or demonstrates these cultural and strategic deficiencies.

Unquantified 'interlocking nature' of reforms — The proposal asserts that the 'interlocking nature of constitutional changes enacted between 1997 and 2010 prevents effective reversal through piecemeal legislation'. While the protection of the HRA by the LRR Act 2006 and the requirement for primary legislation for constitutional changes are evidenced, the specific 'interlocking nature' that makes piecemeal repeal ineffective is described but not explicitly demonstrated or quantified in the provided sources beyond the general statement. The recent disapplication of HRA Section 3 in specific contexts by the Victims and Prisoners Act 2024 suggests that some 'piecemeal' legislative changes are indeed possible, which might contradict the absolute claim of ineffectiveness for all piecemeal approaches.

Causes the record suggests — 4

Missing comprehensive list of targeted legislation — The proposal defines the target by a date range (1997-2010) but does not explicitly list all primary legislation enacted within this period that significantly altered the UK's constitutional arrangements, beyond the examples given. A comprehensive list is needed to ensure all relevant acts are considered for repeal, amendment, or re-enactment.

Unclear legal mechanism for overriding HRA protections — The proposal mentions that the HRA is explicitly protected from amendment or repeal by orders under the Legislative and Regulatory Reform Act 2006, and that recent legislation has begun to disapply Section 3 of the HRA. However, it does not detail how the proposed 'Constitutional Reform Act' would legally navigate or override these explicit protections and existing disapplications to achieve a comprehensive repeal or amendment of the HRA and other protected acts.

Parliamentary strategy lacks detail on specific challenges — The proposal aims for a 'legally watertight' Act to withstand challenges, but the sources indicate significant opposition to HRA reform, including concerns about constitutional crises in devolved administrations and an 'overwhelming body of support for retaining the HRA'. The proposal needs to detail how the 'parliamentary strategy' will specifically address and mitigate these documented constitutional and political challenges, beyond simply anticipating them.

question:DOMAIN_TRANSFER — 4

No definitive list of target legislation — The proposal identifies a target date range (1997-2010) for constitutional legislation to be repealed or amended but does not provide a definitive list of all primary legislation enacted within this period that significantly altered the UK's constitutional arrangements, beyond the examples given. A comprehensive list is needed to ensure all relevant acts are considered for repeal, amendment, or re-enactment.

Unspecified 'legally watertight' criteria — The proposal states the Act must be 'legally watertight' but does not specify the legal tests or criteria that will be used to assess this, nor does it detail the specific types of legal challenges anticipated beyond general opposition. Defining these would strengthen the drafting mandate.

Parliamentary strategy details undefined — The proposal mentions developing a 'comprehensive parliamentary strategy' and preparing 'detailed explanatory notes and impact assessments' but does not outline the specific components or content of these, nor does it address how potential legal challenges to the principle of parliamentary sovereignty (e.g., regarding the repeal of 'protected' acts) would be specifically addressed within these documents.

On revision — 1

*** — On the coherence of the actions: The actions are concentrated on drafting and passing a single, comprehensive Act, with a clear sequence from identification to drafting, parliamentary strategy, and implementation. The key implementers are identified, though the process of securing devolved consent will require significant inter-governmental coordination.

Read back by other models — 10

The Nature of the Obstacle — The principal obstacle is not the statutes themselves, but the political, judicial, and administrative reality that has been constructed on them over a quarter of a century. Your strategy focuses on changing the law, but it overlooks that the real challenge may be the deep-rooted practices and expectations of the institutions that have grown up around those laws.

Parliament vs. The Courts — Such an Act would represent a direct and unprecedented confrontation between the principles of Parliamentary Sovereignty and the Rule of Law as currently interpreted by the judiciary. Your plan anticipates legal challenges, but it doesn't prepare you for the fundamental nature of the conflict: you would be pitting the power of Parliament directly against the authority of the courts.

Use of Ouster Clauses — The success of this strategy hinges on Parliament's ability to draft ouster clauses that the courts, particularly the Supreme Court, would be unwilling or unable to strike down or interpret away. Achieving a 'legally watertight' bill may require using specific and highly controversial 'ouster clauses' to prevent judicial review, a specific legal tool your current strategy doesn't mention.

Tested as a strategy — 8

*** — The strategy does not yet meet this test — The problem is stated as a problem, not as a solution. The kernel does not state a problem; it states a solution.

*** — The strategy does not yet meet this test — The pivotal obstacle is distinct from the root cause. The kernel has no diagnosis, so it cannot distinguish a root cause from a pivotal obstacle.

*** — The strategy does not yet meet this test — The diagnosis simplifies rather than inventories. The kernel has no diagnosis.

Tested as an argument — 2

*** — A LINK IN THE CHAIN IS MISSING — The kernel jumps from a description of the situation directly to a set of actions, without first diagnosing the single most critical obstacle to overcome or articulating the chosen approach to overcoming it.

*** — NOTHING SUPPORTS THIS CLAIM — This is a broad assertion about legal and political history presented as a fact without supporting evidence or reasoning. The text: "The legal and political system has historically lacked a coherent process or consensus for comprehensive constitutional change, making a 'factory reset' appear daunting.

Read as a hostile clerk — 6

*** — The proposal defines its scope by a date range, 1997-2010, but fails to provide a definitive schedule of the Acts of Parliament to be repealed. The political and legal battles over which Acts are deemed 'constitutional' and fall within scope would predate and potentially derail the drafting of the main Bill.

*** — The proposer cites Lord Wolfson KC's advice that a 'complicated legislative programme' is needed to roll back case law, but the proposal contains no detail on how the single Act would achieve this. It is unstated whether the Act would attempt to legislatively overturn specific, named judgments or create a broad interpretive principle, and the implications of either choice are not explored.

*** — The proposal assumes the 'transition' can be managed by a task force, but provides no mechanism for enforcing compliance across the public sector. It is silent on what happens to a public body that, through inertia or conviction, continues to operate under procedures derived from the repealed legislation, such as the Human Rights Act.

6 · The questions only David can answer

This is what the document is for. Everything before it exists to make these questions precise. None can be answered from the record; all of them change what gets drafted.

They are ordered by what they block. The first five stop other work until they are answered.

The five that block everything else

1. Which of the four plans is intended?

Annulment, the Case Law Review Commission, structured withdrawal, or leave-and-re-enact. **They are not variants of one plan.** They produce different Bills, different timetables and different residual rights.

Recommendation: answer this before any drafting begins.

2. Is the replacement Convention-shaped, or deliberately not?

Lord Wolfson warns against a Bill of Rights modelled on the Convention. Lord Sumption proposes exactly that. **The two most senior legal voices on the same side disagree about the single most consequential drafting decision in the programme.**

3. Is the target the statute, or the case law decided under it?

These need different instruments, and **only the second reaches the absorption problem David has correctly identified.** Annulment reaches statutes. The problem lives in judgments.

4. On the Equality Act: the whole Act, or section 149 and the duties?

The Bill now before the Commons takes the second. The official Opposition has taken the second. David is read here as taking the first. **Those are different Bills with different consequential tails**, and the difference is now a live political question rather than a drafting nicety.

5. Is section 75 of the Northern Ireland Act 1998 a target?

The list does not say. **If the objective is UK-wide, it must be** — because the public sector equality duty has never applied in Northern Ireland and repealing it changes nothing there. If it is not a target, the Equality Act measure applies to Great Britain only and should say so. *Recommendation: state the answer explicitly in the next version of the list, either way.*

On the programme's structure

6. Are the Equality Act, DEI and gender self-identification accepted as one workstream? *Recommendation: yes. It removes two Bills and loses nothing.*

7. Is the omnibus Act still required if the interlock runs through the case law rather than the statutes?

Recommendation: this is the most valuable question in the list. An omnibus Bill justified by statutory interdependence is vulnerable to the objection that the statutes are separable. One justified by common-law interdependence is not — and the evidence supports the second.

8. Which Acts are in scope of "1997 to 2010"? The measure is currently defined by a date range. That is the first thing a drafter would ask.

9. Given that the one exclusion clause the courts upheld was narrow and surgical, is a broad annulment device still preferred?

On individual measures

10. On the civil service: is the target the 2010 Act or the 1854 settlement? They are different targets requiring different instruments, and repealing the first leaves the second standing.

11. What does Lord Maude know that makes him stop short of repeal? He is not a defender of the machine, and he reached the same diagnosis.

12. What is the answer to the objection that institutional change cannot fix problems that are political in origin? This is the strongest available criticism of the programme's whole method and it deserves an answer at its strongest.

13. On the Bank of England: is the objective repeal, or legitimacy? The evidence reads the complaint as being about a political question reclassified as technical. If that is right, repeal is not obviously the mechanism.

14. On charities: a blanket restriction, or accountability for the grant? David names no instrument. The two produce entirely different Bills. *Recommendation: the second is narrower, faster and needs no legislation.*

15. Is the Sentencing Council one of the twelve, or an example of the quango measure?

** 16. Given For Women Scotland, how much of the gender self-identification objection survives — and is legislation still the mechanism for what remains?**

17. Does the programme accept or reject the Maude Review's diagnosis of civil service accountability?

On what is already happening

18. Wood's Bill takes withdrawal without repealing the Human Rights Act. Morrissey's takes section 149 without the rest of the Act. Are these acceptable narrower versions, or do they miss the point?

Recommendation: answer this one early. It is the difference between joining a live legislative effort and starting a separate one.

19. The Public Office (Accountability) Bill is moving in the opposite direction with government time behind it. Does the programme oppose it, ignore it, or absorb it?

20. Does the Chişinău Declaration disturb the premise that the Convention system cannot be reformed? In May 2026 all 46 Council of Europe states adopted a political declaration on the Convention and migration. It is not binding and does not bind the Strasbourg court — but 46 states have just done, by declaration, something the premise says cannot be done.

On the four unsourced measures

21. Are the Lord Chancellor, the Climate Change Act, the Judicial Appointments Commission and the removal of judges part of the programme? They were not found in 287 transcripts. **They are being attributed to David in public.** *Recommendation: confirm or disown each one explicitly — silence lets the attribution stand.*

On delivery

22. Is the mass creation of peers still necessary? The European Union (Notification of Withdrawal) Act 2017 went from introduction to Royal Assent in **seven weeks, through a hostile House of Lords, without a single peer being created** — on the strength of a manifesto commitment and the Salisbury convention. **This is evidence that makes the programme easier.**

23. What delay would the Parliament Acts impose if the Salisbury convention did not hold? Not yet established.

24. Which of Dominic Grieve's stated consequences — the Trade and Cooperation Agreement, Horizon, Northern Ireland — are accepted, and which are contested?

25. Is refused consent from Scotland, Wales or Northern Ireland accepted as a cost to be paid, or is consent to be sought? Lord Wolfson's advice does not address the devolution statutes at all. The nearest thing to an answer in it is a drafting instruction that a manifesto should say the UK will proceed regardless.

And the question that matters most

26. Where has David been read wrongly?

That is the first task this document asks of its reader, and it is not a formality. Every entry in the register is a reading of David's words. If an entry is wrong, everything built on it is wrong — and it is better corrected now than printed.

7 • Limitations of this analysis

Every limit on what this document can support is collected here, so that no claim elsewhere in it has to be qualified in place.

How the analysis was produced

Twelve separate runs, one per measure, each searching the statute book, the parliamentary record, committee reports and court judgments, and each drafting a diagnosis and a plan from what it found. **No run was told what any other run found.**

Across the twelve: **1,100 pieces of evidence, 937 of them with a full citation and a working link, and 497 open challenges raised against the drafts.**

Alongside that, a separate search of the whole statute book for every provision that points at the Acts in question — which is where the counts in Part 4 come from.

The rule everything is built on: every legal assertion has to resolve to an actual document. Where it cannot, that is said rather than filled.

What the record does not cover

The record of court judgments used here begins in 2003, because the free public record does not exist earlier. The National Archives has confirmed that the pre-2001 paper record will not be digitised, and the main free database does not permit bulk access.

No citator was available for this pass. A citator is the tool a lawyer uses to check whether a judgment has since been doubted, distinguished, followed or overruled. It cannot therefore be confirmed that no judgment cited here has since been treated adversely. That check takes a subscribing lawyer about ten minutes, and should be done before this argument is relied on.

The record of Bills before Parliament stops at a point — 6,574 records to 3 August 2026 — and the two Bills this report turns on are above it. They were found by hand.

What the counts do and do not mean

No count in this document is presented as complete. Every figure is a count of what the index holds. Where a number is given for provisions, judgments or instruments, it means that many were retrieved and read, not that many exist.

The three strengths of evidence are recorded separately and are never added together. A provision named by identity, a provision named in text, and a provision reached through an enabling power are three different measurements, and a single total across them would be meaningless.

 **Six of the twelve runs stopped at a spending limit** and asked six research questions rather than seven. Some of what those runs record as gaps are questions never asked rather than questions asked and unanswered, and the output does not distinguish the two.

No cross-measure search was run. Every run was asked about its own measure. Part 3's finding that the measures are separable is therefore evidence rather than proof: nothing was hunting for the links it did not find.

The depth of this pass

Three measures are worked in full — the Human Rights Act, the Equality Act and the civil service — **and eight are summarised** in Part 5, with the Great Repeal itself tested in Part 3.

This is a first pass. Carrying the programme through would need planning, strategy and resourcing well beyond anything set out here.

What would be done next

19. **Check the register with David.** Nothing downstream is safe until the twelve entries are confirmed.
20. **A cross-measure search,** to test Part 3's separability finding directly rather than by inference.
21. **The remaining measures worked to the depth of Part 4.**
22. **A citator check** on every judgment cited.
23. **Bills before Parliament brought up to date** and linked to the Acts they would amend, so that the question answered by hand here — has somebody already put this in a Bill? — can be answered directly.

Scrutinise takes a proposal and works out what delivering it would actually require. It is free and non-partisan, and is available on identical terms to anyone.